

Terms and Conditions

1. Scope and purpose of the Terms and Conditions

These Terms and Conditions apply to visitors and users of the WordWildWest mobile application, including gameplay, accounts, profiles, cloud saves, rankings, virtual goods, rewarded and interstitial ads, in-app purchases, updates, support, local notifications and related services.

The application is made available by BAD DUCK STUDIO, LDA ("Bad Duck Studio", "we", "us" or "our").

The company's corporate purpose, and the application, include in particular the following:

- Production, publication and distribution of interactive content, multimedia products, art, technology and associated services, as well as purchase and sale of hardware and software and video game development studio activities.
- Programming, production and commercialisation of interactive software, video games and electronic entertainment. Publishing of computer games for all platforms, and activities involving the design, development, supply and documentation of programs.
- Programming of software adjusted to client needs.
- Wholesale or retail trade, import and export and trading activity.
- Electronic commerce and provision of services in the area of information technology and programming.
- Promotion, marketing and market prospecting activities, technical support and consultancy for the creation, development, expansion and modernisation of industrial, commercial and service companies internationally.
- Acquisition, sale and any other form of exploitation of trademarks, patents and copyrights.
- Representation, import, export and commercialisation of products related to the corporate purpose.
- Organisation and promotion of events.
- Technical post-production activities for films, videos and television programmes.
- Trade in computer equipment and related products.

2. Acceptance of the Terms

By downloading, accessing or using the application, the user declares that they have read, understood and accepted these Terms and Conditions, as well as our Privacy and Data Protection Policy.

3. Eligibility, age and minors

The application is a general-audience word game that may be suitable for children, teenagers and adults. Because children may use the application, we apply additional safeguards where required, including age-appropriate privacy settings, restrictions on personalised advertising for children, parental consent where required and compliance with the family/children rules of application stores.

Minors under 13 years of age, or users whose age is not indicated, must use the application in child mode or unknown-age mode where required, without personalised advertising, with reduced tracking, age-appropriate content and limited social/account features unless a lawful parental consent flow exists.

From 13 to 17 years of age, the application applies high privacy settings by default, avoids behavioural advertising when required or appropriate, and requires parental authorisation for purchases, account features or privacy choices where local law requires it.

Users aged 18 or over may access the normal experience, subject to regional consent choices, device settings, store rules and applicable law.

If the user is not old enough in their country to consent to digital services, privacy choices or purchases, they may use the application only with the involvement and consent of a parent or legal representative.

We may use platform age signals, parental controls, child-directed advertising settings or other proportionate measures. We may restrict features, disable personalised advertising, apply higher privacy settings or delete data where required by age, consent or child-protection rules.

4. Licence to use

We grant the user a limited, personal, non-exclusive, non-transferable and revocable licence to install and use the application on compatible devices, only for personal and non-commercial purposes.

The user may not copy, modify, sell, distribute, rent, sublicense, commercially exploit, reverse engineer, remove proprietary notices, use the application for unlawful purposes or interfere with servers, accounts, systems or networks.

5. Intellectual property

The application, including software, gameplay, text, puzzles, graphics, art, characters, logos, trademarks, sounds, music, databases and other content, belongs to Bad Duck Studio or its licensors. Use of the application does not transfer intellectual property rights to the user.

6. App stores and platforms

The download and use of the application may also be subject to the terms of Google Play, Apple App Store, Google Play Games, Apple Game Center, operating systems and other platform services. If there is a conflict with mandatory platform rules, those rules prevail to the necessary extent.

7. Internet connection, device and costs

Some features require an internet connection, compatible hardware, a supported operating system version, storage, permissions or platform services. The user is responsible for data, roaming or internet access costs charged by third parties.

We are not responsible if the application does not operate correctly due to lack of internet access, device limitations, disabled permissions, platform failures, network problems or factors outside our reasonable control.

8. Accounts, authentication and cloud

Some features may require an account, guest login, Google, Apple, PlayFab or other authentication systems. Cloud saves, rankings, account recovery, profiles, cross-device progress, purchase validation and account deletion may depend on those services.

The user is responsible for the security of the device, account, credentials and associated activity. The user must not share accounts, impersonate another person or use another person's account without authorisation.

Guest accounts may have limited recovery options. If the user uninstalls the application, clears local storage, loses access to the device, resets the device or does not link a supported platform account, guest progress, cloud save association, virtual currency, inventory, ranking history or other account data may not be recoverable.

9. In-app purchases and virtual goods

The application may offer virtual goods, virtual currency, consumables or the premium functionality to remove certain ads ("Remove Ads"). Purchases are processed and billed by the relevant app store (Google or Apple), subject to its payment and refund rules.

Under Decree-Law no. 24/2014, the consumer has the right to withdraw from the purchase within 14 days. However, because this is digital content not supplied on a tangible medium, the user expressly acknowledges and agrees that, when starting the download or immediate supply of the virtual good or currency, they lose their right of withdrawal, making the purchase final and non-refundable, except in case of product non-conformity or if the app store policy states otherwise.

- Virtual goods and currencies have no real monetary value.
- They cannot be exchanged for money, goods or services outside the application.
- They are licensed, not sold.
- They may be lost if the account is deleted, suspended or terminated, or if the application is discontinued, unless the law requires otherwise.

The Remove Ads purchase may remove configured mandatory ads, but may not remove optional rewarded ads that the user chooses to watch, store notices, consent notices, platform messages, service communications or third-party content outside our control.

10. Advertisements and rewarded ads

The application is supported by advertising and may display interstitial, rewarded and other ad formats. Ads may be provided through Unity LevelPlay, Unity Ads and Google AdMob.

Depending on region, device, age, consent and partner configuration, ads may be contextual, non-personalised or personalised. Where the law requires, we will request valid consent before personalised advertising, non-essential advertising measurement or tracking.

11. User conduct and fair play

The user may not use cheats, bots, scripts, exploits or unauthorised software; manipulate scores, rankings, rewards, purchases or progress; exploit bugs; harass other users; publish unlawful or offensive content; or violate the law or these Terms.

If we detect or reasonably suspect a violation of these rules, we reserve the right to remove scores, reverse fraudulent activity or temporarily suspend the account. In case of a sanction, the user will be notified and will have the right to submit a reasoned challenge to our support email within 14 days, ensuring the right to be heard.

12. Local notifications

The application may send local notifications to the user's device (life reminders, rewards, cooldowns). The user may disable or manage these notifications at any time directly in the operating system settings or game settings. These notifications are reminders only and do not guarantee online service availability at specific times.

13. User content

If the application allows submission of names, icons or profiles, the user assumes full responsibility for the submitted content. The user grants us a limited licence to host, display, process and transmit that content only to the extent necessary to operate, moderate, protect and improve the application.

14. Updates and availability

We may update, modify, suspend or discontinue the application or parts of it for technical reasons, security, legal compliance, platform requirements, bug fixes, game balancing or service improvement. We do not guarantee continuous availability, absence of errors or compatibility with all devices.

15. Third parties, SDKs and data

The application may use SDKs, ad networks, analytics tools, backend, authentication, app stores and platform services. More information is available in the **Partners and SDKs Notice**, the **Privacy Policy** and the **Cookie and Similar Technologies Policy**.

16. Consumer rights

Nothing in these Terms excludes or limits mandatory consumer rights, statutory guarantees, cancellation rights, refund rights or remedies that cannot be excluded in the user's country or region.

17. Suspension and termination

The user may stop using the application at any time. We may suspend or terminate access if there is a material breach of these Terms, misuse, security or fraud risks, legal obligation, authority order, platform requirement or discontinuation of the application.

18. Disclaimer and limitation of liability

The application is provided "as is" and "as available", without prejudice to mandatory consumer rights. To the maximum extent permitted by law, we will not be liable for indirect, incidental, special, consequential or punitive damages, loss of profits, data, goodwill, business interruption, device failures, network costs or losses resulting from misuse.

Nothing limits liability where prohibited by law, including fraud, intent, gross negligence, death or personal injury caused by negligence, or mandatory consumer rights.

19. Governing law and dispute resolution

These Terms are governed by and interpreted in accordance with Portuguese law, without prejudice to mandatory consumer protection rules in the user's country of residence. For any complaint or question, we ask that you contact us first through **contact@badduckstudio.com** or our **Support Request** page.

In case of an unresolved consumer dispute, and in strict compliance with Law no. 144/2015, we inform consumers that they may use the following Alternative Dispute Resolution (ADR) entities:

CNIACC - National Centre for Information and Arbitration of Consumer Conflicts

Website: **www.cniacc.pt**

Email: **cniacc@fct.unl.pt**

The former European Online Dispute Resolution Platform (ODR/RLL) was discontinued by the European Commission on 20 July 2025 and is no longer indicated as a channel for submitting new disputes. For cross-border consumer disputes in the European Union, consumers may use the competent alternative dispute resolution entities or the official consumer support channels available in their country.

Bad Duck Studio also makes the Electronic Complaints Book available through the official portal at **www.livrodereclamacoes.pt**.

20. Changes

We may update these Terms. We will update the effective date and make the new version available in the application, website or store. Material changes will be communicated where required by law.

21. Contact

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Email: **contact@badduckstudio.com**

For specific requests related to account deletion, game bugs, purchase issues or privacy rights (GDPR), please use our dedicated **Support Request** page.